

22AHCV01047 22AHCV01047

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-27

Motion: MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

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Case Number: 22AHCV01047 Hearing Date: July 27, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JOSE PENA,

Plaintiff(s),

vs.

AMERICAN
HONDA MOTOR COMPANY, INC.,

Defendant(s).

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CASE NO.: 22AHCv0001047

[TENTATIVE]

ORDER RE: MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

Dept.

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8:30

a.m.

July 27,

2026

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I.

INTRODUCTION

Plaintiff Jose Pena ("Plaintiff") moves
for an award of attorneys' fees consisting of a "lodestar" amount of
\$56,443.50, a lodestar enhancement of 1.5 in the amount of \$28,221.75, and
\$17,813.43 in costs and expenses.

Defendant American Honda Motor Co. ("Defendant")
filed an opposition brief on June 12, 2026.

Plaintiff filed a reply brief on June

18, 2026.

On June 26, 2026, Defendant filed a “notice of binding authority” arguing that Plaintiff’s fee motion was untimely pursuant to *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644,646-47.

The Court continued the hearing to July 27, 2026, to allow Plaintiff an opportunity to submit a supplemental brief addressing Defendant’s “notice of binding authority.”

Plaintiff filed his supplemental brief on July 7, 2026.

II. DISCUSSION

A. Timeliness and Defendant’s Notice of Binding Authority

Under California Rules of Court, rule 3.1702, a motion for fees incurred up to the time of judgment must be served and filed within the time for filing a notice of appeal, i.e. 60 days after service of notice of entry of judgment or 180 days after entry of judgment, whichever is earlier. A voluntary dismissal pursuant to a settlement is a judgment within the rule prescribing the time to appeal. (*Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649.) The purpose of rule 3.1702 is to provide time limits within which all motions for attorney fees in civil cases must be made, including cases that end in a voluntary dismissal. (*Ibid.*)

Defendant argues that the motion was filed more than 60 days after dismissal. However, dismissal was entered on December 5, 2025. Sixty days from December 5, 2025, is February 3, 2026. Therefore, Plaintiff’s motion, filed on February 3, 2026, is timely.

B. Attorneys’ Fees

Plaintiff submits the declaration of Roger Kirnos, wherein he attests to the qualifications of the attorneys and paralegals who performed 123.9 hours of work on this matter. The declaration sets forth the reasonableness of the attorneys' hourly rates, which range from \$295-\$625, as well as that of the paralegal's hourly rate of \$145. Plaintiff also argues that a lodestar multiplier of 1.5 is appropriate due to the contingent nature of the case.

In opposition, Defendant argues that Plaintiff's counsel should not recover more than \$28,582 and that the amount billed reflects "bloated hours worked by 17 different timekeepers.) Defendant argues that "[t]o the extent any original work was performed, counsel's overstaffing must inevitably have resulted in duplicative billing and excessive amounts of time on rote tasks." (Opp., p. 5.) Defendant also argues that the rates billed by Plaintiff's counsel are excessive and proposes a blended hourly rate of \$350 for all attorneys and staff.

In the Court's experience, the hourly rates charged by Plaintiff's counsel are reasonable in comparison to other lemon law attorneys who prosecute cases on a contingency basis. The number of hours billed for the work is also reasonable. Despite pointing out the number of timekeepers staffed on the matter, Defendant does not identify any billing entries that demonstrate overstaffing or inefficiency. Defendant points to the amount of time spent on deposition preparation. However, the fact that Defendant did not conduct lengthy depositions is not evidence that the time spent preparing for them was excessive. Furthermore, Defendant's complaints of improper block-billing are unfounded because the entries are sufficiently descriptive. Last, Defendant's claims that Plaintiff's counsel improperly billed for clerical work is unsupported. Therefore, the Court declines to make any reductions to the lodestar. In fact, the Court adds the fees incurred by Plaintiff's counsel in responding to Defendant's notice of binding authority to the lodestar in the reduced amount of \$665, consisting of 2 hours at a law clerk's hourly rate of \$175 and 0.7 hours at Nitin Sapra's hourly rate of \$450. In total, the lodestar is \$57,108.50.

With respect to Plaintiff's request for a lodestar multiplier, the Court notes as an initial matter that Plaintiff requests a 1.5 lodestar enhancement in the beginning of its moving papers and three different multipliers (1.2, 1.3, and 1.5) in three consecutive sentences towards the end. (Compare Motion, p. 2 with p. 13). Plaintiff argues that a

Iodestar is appropriate because this case involved risk on three different levels. Plaintiff argues that counsel risked not being paid at all and claims that Plaintiff's counsel "risked the amount of hours" as well as their hourly rates. This attempt to exaggerate Plaintiff's counsel's risk exposure is unpersuasive because all three "levels" involves the same risk present in contingency matters: not being paid. Additionally, there is nothing in this case that is out of the ordinary, which is evidenced by Plaintiff's counsel's admitted ability to make extensive use of templates.

C.

Costs

Defendant did not challenge the costs claimed by Plaintiff. Therefore, the motion is granted with respect to costs.

III.

CONCLUSION

Plaintiff's motion is GRANTED in part and Plaintiff's counsel is awarded fees and costs in the amount of \$74,921.93, consisting of \$57,108.50 in fees and \$17,813.43 in costs.

Dated

this 27th

day of July 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no

appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.